

**BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL
COMMISSION**

BENGALURU URBAN DISTRICT, BENGALURU

Consumer Complaint No. 412 of 2025

Date of filing: 03.03.2025 | Date of order: 18.09.2026

PRESENT: Sri K. Venkatesh, President | Smt. Meera Iyer, Member | Sri Abdul Rahim,
Member

COMPLAINANT:

Ms. Ananya Rao, aged 31 years, D/o Sri Prakash Rao, residing at No. 7, 4th Cross, Jayanagar 9th Block, Bengaluru 560069. (By Sri Vikram Shetty, Advocate)

OPPOSITE PARTIES:

1. Zenith Mobiles Private Limited, a company incorporated under the Companies Act, 2013, having its registered office at Plot 12, Electronic City Phase II, Bengaluru 560100, represented by its Managing Director. (By Sri Arjun Menon, Advocate)
2. QuickFix Service Centre, authorised service provider of Opposite Party No. 1, No. 45, 30th Cross, Jayanagar 4th Block, Bengaluru 560011, represented by its Manager. (Ex parte)
3. Metro Electronics, No. 101, Brigade Road, Bengaluru 560025, represented by its Proprietor. (By Smt. Kavya Rao, Advocate)

ORDER

By Smt. Meera Iyer, Member:

1. This complaint is filed under Section 35 of the Consumer Protection Act, 2019 (hereinafter "the Act"), seeking a direction to the Opposite Parties to refund the price of a defective mobile phone, Rs. 74,999, along with compensation of Rs. 1,00,000 for mental agony and inconvenience, and costs of the litigation.

Brief facts of the complaint

2. The case of the complainant is that on 21.09.2024 she purchased a Zenith Z-Pro 5G mobile phone, IMEI No. 35000000000000 (specimen), manufactured by Opposite Party No. 1, from Opposite Party No. 3 for a total consideration of Rs. 74,999 under Tax Invoice No. ME/2024/8841. Along with the phone she purchased an extended warranty plan, "Zenith Care Plus", for Rs. 4,999, which extended the standard one-year manufacturer warranty by a further twelve months.
3. Within about three months of purchase, on 28.12.2024, a green vertical line appeared on the display of the phone, and the touch screen became intermittently unresponsive. The complainant took the phone to Opposite Party No. 2, the authorised service centre, on 30.12.2024. Opposite Party No. 2 issued Job Sheet No. QF-10233, recorded the complaint

as "display line, touch issue", noted the physical condition of the phone as "good, no physical or liquid damage", and returned the phone on 06.01.2025 after replacing the display assembly.

4. The same defect recurred on 19.01.2025. The phone was again deposited with Opposite Party No. 2 under Job Sheet No. QF-10871 and was returned on 29.01.2025 after a software update and a second replacement of the display assembly. On 11.02.2025 the phone stopped charging and the display defect reappeared. The phone was deposited for the third time under Job Sheet No. QF-11402. On this occasion Opposite Party No. 2 informed the complainant orally that the motherboard was faulty and would have to be replaced, and that parts were awaited from Opposite Party No. 1.

5. On 20.02.2025 Opposite Party No. 2 returned the phone and, for the first time, produced a report stating that the phone showed "liquid ingress indicators triggered" and that the repair was therefore not covered by the warranty. The report demanded Rs. 32,500 for replacement of the motherboard. The complainant refused, pointing out that the two earlier job sheets recorded no liquid damage and that the phone had been in the possession of Opposite Party No. 2 for most of the preceding seven weeks.

6. The complainant wrote to the customer care of Opposite Party No. 1 by email on 21.02.2025 and 24.02.2025, requesting replacement of the phone or a refund. Opposite Party No. 1 replied on 26.02.2025 stating that it relied on the report of its authorised service centre and could not offer a replacement. The complainant then issued a legal notice dated 27.02.2025 to all three Opposite Parties. Opposite Parties No. 1 and 3 replied denying liability; Opposite Party No. 2 did not reply. Aggrieved, the complainant filed this complaint, alleging that the phone suffers from a manufacturing defect, that the Opposite Parties were deficient in service, and that the denial of warranty on a false ground amounts to an unfair trade practice.

Version of the Opposite Parties

7. Opposite Party No. 1 filed its version contending that the phone was manufactured under strict quality control, that each unit is tested before dispatch, and that the defects complained of arose from mishandling and exposure to liquid by the complainant, which voids the warranty under Clause 4(c) of the warranty terms. It contended that the earlier repairs were carried out free of cost as a gesture of goodwill. It further contended that the complainant had not produced any expert evidence to establish a manufacturing defect, and that in the absence of such evidence the complaint was liable to be dismissed. It also raised an objection that this Commission lacks territorial jurisdiction because its registered office falls outside the limits of Bengaluru Urban District.

8. Opposite Party No. 3 contended that it is merely a retailer which sold the phone in a sealed box as received from the manufacturer, that it had no role in the manufacture or repair of the phone, and that no deficiency in service can be attributed to it. It prayed that the complaint against it be dismissed.

9. Despite service of notice, Opposite Party No. 2 did not appear before the Commission

and was placed ex parte on 14.05.2025.

Points for consideration

10. On the basis of the pleadings, the following points arise for our consideration: (i) Whether this Commission has jurisdiction to entertain the complaint? (ii) Whether the complainant proves that the phone suffers from a manufacturing defect and that the Opposite Parties were deficient in service or indulged in an unfair trade practice? (iii) Whether the complainant is entitled to the reliefs sought? (iv) What order?

11. The complainant filed her affidavit evidence and produced Exhibits C-1 to C-14, namely the tax invoice, the extended warranty certificate, the three job sheets, the report dated 20.02.2025, the email correspondence, the legal notice, the replies, and postal receipts. The authorised signatory of Opposite Party No. 1 filed affidavit evidence and produced Exhibits OP-1 to OP-4, including the warranty terms and an internal quality-control certificate. Opposite Party No. 3 filed affidavit evidence without documents. We have heard the learned counsel for the complainant and for Opposite Parties No. 1 and 3 and perused the record.

Point (i): Jurisdiction

12. Under Section 34(2) of the Act, a complaint may be instituted before a District Commission within whose local limits the opposite party carries on business or has a branch office, or where the cause of action wholly or in part arises, or where the complainant resides or personally works for gain. The phone was sold by Opposite Party No. 3 and repaired by Opposite Party No. 2, both of which carry on business within Bengaluru Urban District, and the complainant resides here. The cause of action therefore arose within our jurisdiction, and the objection of Opposite Party No. 1 is untenable. The value of the goods and the compensation claimed is well within the pecuniary limit of this Commission under Section 34(1). The complaint was filed within the period of two years prescribed by Section 69. Point (i) is answered in the affirmative.

Point (ii): Defect, deficiency and unfair trade practice

13. It is not in dispute that the complainant purchased the phone for consideration for her personal use; she is therefore a "consumer" within the meaning of Section 2(7) of the Act. Section 2(10) defines "defect" to mean any fault, imperfection or shortcoming in the quality, quantity, potency, purity or standard which is required to be maintained under any law or under any contract, express or implied, or as is claimed by the trader. Section 2(11) defines "deficiency" to mean any fault, imperfection, shortcoming or inadequacy in the quality, nature and manner of performance which is required to be maintained under any law or which has been undertaken to be performed by a person in pursuance of a contract or otherwise in relation to any service.

14. The documents on record speak for themselves. Exhibit C-3, the first job sheet dated 30.12.2024, issued by the authorised service centre of Opposite Party No. 1 itself, records the condition of the phone as "good, no physical or liquid damage". Exhibit C-4, the second job sheet dated 19.01.2025, contains the same endorsement. The same display defect

recurred within three months of purchase and again within three weeks of the first repair, and the phone thereafter stopped charging. A product which requires the replacement of its display assembly twice and then its motherboard, all within five months of purchase, cannot be said to be free from defect. The recurrence of the same defect after repairs by the manufacturer's own service centre is, in our considered view, sufficient to infer a manufacturing defect, and expert evidence is not indispensable where the documents of the opposite party themselves establish the defect.

15. The plea of liquid damage was raised for the first time in the report dated 20.02.2025 (Exhibit C-6), after the phone had remained in the custody of Opposite Party No. 2 for the greater part of the preceding seven weeks. No photographs of the liquid ingress indicators, no technician's affidavit, and no contemporaneous record were produced to substantiate it. Opposite Party No. 2, which prepared the report, chose not to appear and defend it. Opposite Party No. 1 has merely relied on that report. We find that the denial of warranty on this unsubstantiated ground, in the teeth of its own earlier job sheets, amounts to deficiency in service by Opposite Parties No. 1 and 2, and to an unfair trade practice within the meaning of Section 2(47) of the Act.

16. As regards Opposite Party No. 3, the record shows that it sold the phone in a sealed condition and had no role in the repairs or the denial of warranty. A product seller who did not exercise substantial control over the design, manufacture or warranty of the product is not liable merely by reason of the sale, in the facts of this case. The complaint against Opposite Party No. 3 is accordingly dismissed. The liability of Opposite Party No. 1 as manufacturer also arises under Chapter VI of the Act, including Section 84, since the product suffered a manufacturing defect and did not conform to the express warranty given. Point (ii) is answered partly in the affirmative.

Point (iii): Reliefs

17. The complainant has been deprived of the use of an expensive phone for the greater part of the period since December 2024 and has had to visit the service centre repeatedly. She has also been compelled to issue a legal notice and approach this Commission. Having regard to Section 39 of the Act, we are of the view that a refund of the price of the phone and of the extended warranty plan, with interest, together with reasonable compensation and costs, will meet the ends of justice.

Point (iv): Order

18. In the result, we pass the following:

- (a) The complaint is partly allowed against Opposite Parties No. 1 and 2, who shall be jointly and severally liable. The complaint against Opposite Party No. 3 is dismissed.
- (b) Opposite Parties No. 1 and 2 are directed to refund Rs. 74,999, being the price of the phone, and Rs. 4,999, being the price of the extended warranty plan, to the complainant, with interest at 9 percent per annum from 20.02.2025 until the date of payment.
- (c) Opposite Parties No. 1 and 2 shall pay compensation of Rs. 25,000 for mental agony

and inconvenience, and Rs. 10,000 towards the costs of litigation.

(d) The above amounts shall be paid within 45 days from the date of this order. In default, the amounts in clauses (b) and (c) shall carry interest at 12 percent per annum from the date of this order until realisation.

(e) On receipt of the amounts, the complainant shall return the phone with its accessories to Opposite Party No. 1 within 15 days, against acknowledgement.

(f) Free copies of this order shall be furnished to both parties, and the file shall thereafter be consigned to the record room.

Dictated to the stenographer, transcribed and corrected by me, and pronounced in open Commission on this the 18th day of September, 2026.

(Meera Iyer) Member (K. Venkatesh) President (Abdul Rahim) Member